

Urban Area Public Transport (Management) Authority Act, 2022

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An Act Made to Provide for the Integrated Public Transport Management in Urban Areas

Preamble: Whereas, it is desirable to make public transport services in urban areas convenient, accessible, passenger-friendly, reliable, cost-effective, and safe, to manage, develop, and expand an integrated transport system for the effective management of the public transport policy, and to establish a public transport authority in urban areas,

Therefore, the Federal Parliament has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be cited as the "Urban Area Public Transport (Management) Authority Act, 2079".

(2) This Act shall commence from the thirty-first day after the date of its certification. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Integrated Transport System" means a system that ensures accessible, convenient, reliable, and dependable public transport services for passengers by maintaining coordination among public transport service providers.

(b) "Prescribed" or "As prescribed" means prescribed or as prescribed in the rules made under this Act.

(c) "Council" means the Council pursuant to Section 13.

(d) "Parking" means a place designated for stopping vehicles, except at a terminal.

(e) "Chief Executive Officer" means the Chief Executive Officer pursuant to Section 7.

(f) "Authority" means the Public Transport Authority pursuant to Section 3, and the term also denotes the Authority pursuant to Section 12.

(g) "Ministry" means the Ministry of the Government of Nepal dealing with transport matters.

(h) "Passenger" means a person using public transport.

(i) "Terminal" means a designated place for passengers to board and alight for the purpose of traveling in public passenger transport.

(j) "Urban Area" means the area of a municipality, and the term also denotes the area of a rural municipality

adjoining the municipality.

(k) "Public Transport" means buses, taxis, rail, metro rail, light rail, sky rail, monorail, cable car, ride sharing, and other vehicles prescribed as such, operated by electric or other fuel, registered in accordance with the prevailing law to provide public transport services and listed with the Authority.

(l) "Service Provider" means a firm or company licensed in accordance with the prevailing law to operate public transport within the area specified by the Authority according to the standards set by the Authority.

(m) "Federal Capital City Area" means the area of the districts of Kathmandu, Bhaktapur, and Lalitpur.

(n) "Local Level" means a municipality or a rural municipality. Chapter-2

Establishment of Authority

3.

5. Functions, Duties, and Powers of the Authority: (1) Notwithstanding anything contained in the prevailing law, the functions, duties, and powers of the Authority regarding the development of an integrated transport system shall be as follows:-

(a) To formulate policies, short-term and long-term plans, and strategies related to public transport,

(b) To operate and manage public transport,

(c) To develop an integrated transport system,

(d) To conduct or cause to conduct studies and research related to the operation of an integrated transport system,

(e) To develop and implement an integrated and cashless electronic fare system based on information technology among public transport means,

(f) To develop and implement a real-time transport service information system regarding public transport services,

(g) To regularly collect, record, update, and qualitatively utilize details related to public transport,

(h) To comply with the directives given from time to time by the Government of Nepal and the Provincial Government in accordance with the long-term plan and strategy of the integrated transport system,

(i) To manage public transport services keeping in view the interests of passengers,

(j) To set quality standards for public transport services in coordination with the concerned government bodies,

(k) To determine the format of cashless electronic tickets,

(l) To issue electronic tickets for a prescribed period,

(m) To determine terminals, passenger waiting rooms, and parking areas in coordination with the concerned body,

(n) To arrange for minimum service facilities including necessary toilets for passengers in and around terminals, passenger waiting rooms, and parking areas in coordination with the concerned body,

(o) To determine routes and fare rates for public transport operating in urban areas in coordination with bodies related to public transport, to create an environment for passengers to pay fares easily, and to implement or cause to implement the same,

(p) To determine conditions for operating public transport services and implement or cause to implement the same,

(q) To set standards for vehicles used for public transport and implement or cause to implement the same,

(r) To cause the operation of environmentally friendly public transport services,

- (s) To purchase services as prescribed or enter into necessary agreements with the private sector or public bodies for the operation of public transport,
- (t) To determine service fees as prescribed in return for providing public transport services to commercial centers, shopping malls, or residential areas,
- (u) To remove, demolish, or relocate physical obstructions, including any building, in accordance with the prevailing law on routes determined by the Authority for operating public passenger transport or in a situation where public movement is obstructed,
- (v) To operate other vehicles one-way or two-way or completely or partially prohibit vehicles as prescribed on routes determined by the Authority according to the physical condition of the road,
- (w) To coordinate with the concerned body for road management to facilitate pedestrians, cyclists, and persons with disabilities,
- (x) To coordinate with the Government of Nepal, the concerned Provincial Government, and local levels for the effective management of public transport,
- (y) To monitor and evaluate plans and programs operated by the Authority or cause to do so and to give necessary directives in relation thereto,
- (z) To conduct emergency and regular inspections of public transport services,
- (aa) To determine necessary standards for the management of public transport, and
- (bb) To perform other functions as per the provincial law.

(2) While performing functions and activities pursuant to sub-section (1), the Authority shall coordinate with the bodies of the Government of Nepal and the concerned Provincial Government.

6. To Develop Integrated Transport System: (1) The Authority shall develop and operate an integrated transport system in the Kathmandu Valley in coordination with the concerned bodies.

(2) Arrangements regarding the development of the integrated transport system pursuant to sub-section (1) shall be as prescribed. Chapter-3

Chief Executive Officer and Employees

7. Chief Executive Officer: (1) A Chief Executive Officer shall be appointed in accordance with the provincial law to carry out the day-to-day administration and management related functions of the Authority.

(2) Notwithstanding anything contained in sub-section (1), the appointment of the Chief Executive Officer of the Authority pursuant to Section 12 shall be made by the Government of Nepal on the basis of open competition as prescribed.

(3) The Chief Executive Officer appointed pursuant to sub-sections (1) and (2) must have passed at least a master's degree in engineering, management, economics, development management, or law from a provincial university or a university recognized by the Government of Nepal, and have at least five years of experience in the relevant field with managerial competence.

(4) Until the appointment of the Chief Executive Officer pursuant to sub-section (2), the Government of Nepal may assign any officer of the gazetted first class to work as the Chief Executive Officer.

(5) The term of office of the Chief Executive Officer shall be five years.

(6) Notwithstanding anything contained in sub-section (5), if the work of the Chief Executive Officer is not satisfactory, the Government of Nepal, in the case of the Authority pursuant to Section 12, and as per the provincial law, in other cases, may remove him/her from office at any time. Provided that before such

removal, he/she shall be given a reasonable opportunity to present his/her defense.

(7) The following persons shall be disqualified from being appointed to the post of Chief Executive Officer:-

- (a) A non-Nepali citizen,
- (b) A person who has exceeded sixty years of age,
- (c) A person who has been convicted by a court on a criminal charge involving corruption, rape, human trafficking and transportation, narcotic drug sale, distribution or transportation, money laundering, passport misuse, kidnapping, polygamy, illegal trade in objects of archaeological importance, offenses related to protected wildlife, organized crime, or other criminal offense involving moral turpitude, and such verdict has become final,
- (d) A person who has obtained permanent residency of a foreign country, or
- (e) A person holding any position of profit in a public body.

Explanation: For the purpose of this clause, "position of profit" means a position that receives regular remuneration or financial benefits from the government fund.

(8) The remuneration, other terms of service, and facilities of the Chief Executive Officer shall be as prescribed.

(9) Until the remuneration, other terms of service, and facilities of the Chief Executive Officer are prescribed pursuant to sub-section (8), they shall be as determined by the Government of Nepal in the case of the Authority pursuant to Section 12, and by the Provincial Government in other cases.

(10) The functions, duties, and powers of the Chief Executive Officer shall be as per the provincial law. 8. Circumstances for Vacancy of the Post of Chief Executive Officer: The post of the Chief Executive Officer shall be deemed vacant in the following circumstances:-

- (a) If he/she is removed pursuant to sub-section (6) of Section 7,
- (b) If a disqualification under sub-section (7) of Section 7 arises,
- (c) If his/her term of office expires,
- (d) If his/her resignation is accepted, or
- (e) If he/she dies. 9. Provisions Relating to Employees: (1) An organization and management survey of the Authority shall be prepared and submitted to the Ministry for approval in the case of the Authority pursuant to Section 12, and as per provincial law in the case of other Authorities.

(2) The Authority shall have necessary employees according to the approved cadre based on the organization and management survey pursuant to sub-section (1).

(3) Until employees are appointed pursuant to sub-section (2), the Ministry, in the case of the Authority pursuant to Section 12, and the Provincial Government, in other cases, shall make employees available on deputation.

(4) Employees required in the Authority for positions at the officer level or above shall be appointed permanently.

(5) The written examination for the selection of permanent employees of the Authority shall be conducted by the Provincial Public Service Commission, and in the case of the Authority pursuant to Section 12, by the Public Service Commission.

(6) Employees needed for assistant and support level positions in the Authority shall be taken on service contract.

(7) The Authority may, subject to the prevailing law, hire the services of experts as necessary.

(8) Other arrangements relating to the appointment procedure, service, terms, and facilities of employees shall be as specified in the regulations. Chapter-4

Fund, Accounts, and Audit

10.

Fund of the Authority: (1) The Authority shall have its own separate fund. (2) The fund pursuant to sub-section (1) shall consist of the following amounts:- (a) Amounts received from the Government of Nepal, (b) Amounts received from the Provincial Government or Local Level, (c) Amounts received from any association, institution, or individual, (d) Amounts received from foreign individuals, governments, or international associations or institutions, (e) Grant amounts provided periodically by the concerned Provincial Government and Local Level for the operation of public transport, (f) Fare amounts as determined by the Authority for managing transport services, (g) Amounts collected regularly or periodically as prescribed from commercial centers, shopping malls, or residential areas for service charges in cases where the Authority operates transport services covering such centers, malls, or residential areas, and (h) Amounts received from other service fees, charges, and fines imposed by the Authority. (3) Before receiving amounts pursuant to clause (d) of sub-section (2), the Authority shall obtain the approval of the Ministry of Finance, Government of Nepal. (4) All expenses to be incurred on behalf of the Authority shall be borne from the fund pursuant to sub-section (1). (5) Operation of the fund pursuant to sub-section (1) shall be as determined by the Authority.

11. Accounts and Audit: (1) The accounts of income and expenditure of the Authority shall be kept in the format and manner approved by the Government of Nepal. (2) The internal audit of the fund of the Authority shall be conducted by an auditor appointed by the Authority, and the final audit shall be conducted by the Auditor General or an auditor designated by him/her. Chapter-5 Federal Capital City Area Public Transport Authority 12. Special Provision Relating to Federal Capital City Area Public Transport Authority: (1) Notwithstanding anything contained in Section 3, a Federal Capital City Area Public Transport Authority shall be established to regulate and manage the public transport service of the Federal Capital City Area. (2) The central office of the Authority established pursuant to sub-section (1) shall be located in Kathmandu. (3) The monitoring of the Authority established pursuant to sub-section (1) shall be done by the Provincial Government. (4) The Authority established pursuant to sub-section (1) may open liaison offices within the Federal Capital City Area as necessary. 13.

Formation of Council: (1) There shall be a Federal Capital City Area Public Transport Council for the conduct, supervision, and management of the functions and activities of the Authority pursuant to Section 12. (2) The Council pursuant to sub-section (1) shall consist of the following Chairperson and members:- Position Description (a) Mayor, Kathmandu Metropolitan City - Chairperson (b) Mayor, Lalitpur Metropolitan City - Vice-Chairperson (c) Mayor, Bhaktapur Municipality - Member (d) Joint Secretary, Ministry - Member (e) Director General, Department of Roads or an employee of at least gazetted first class designated by him/her - Member (f) Director General, Department of Transport Management or an employee of at least gazetted first class designated by him/her - Member (g) Secretary, Ministry dealing with transport matters of Bagmati Province Government - Member (h) Chief, Metropolitan Traffic Police Division or an officer of at least Police Superintendent rank designated by him/her - Member (i) Representatives from different types of large companies operating public transport in the Federal Capital City Area, one each, totaling three persons including at least one woman, nominated by the Council - Member (j) Representatives from among organizations working in the field of consumer interest protection, two persons including at least one woman,

nominated by the Council - Member (k) Persons having expertise in the transport sector, three persons including at least one woman, nominated by the Bagmati Province Government - Member (l) From among the municipalities of Kathmandu, Lalitpur, and Bhaktapur districts not represented in the Council, one representative each, being either the chief or deputy chief nominated by the concerned local level - Member (m) Three persons nominated by the Council representing workers, senior citizens, and persons with disabilities - Member (n) Chief Executive Officer - Member Secretary Explanation: For the purpose of clause (i) of this sub-section, "Large Company" means a company operating public transport in the Federal Capital City Area which registers the highest number of vehicles among such companies. (3) The term of office of members pursuant to clauses (i), (j), (k), (l), and (m) of sub-section (2) shall be five years. (4) If the Council deems necessary, it may invite members of the Federal Parliament representing the districts of Kathmandu, Lalitpur, and Bhaktapur, members of the Provincial Assembly, any body of the Government of Nepal, Provincial Government or Local Level, domestic or foreign experts to the meetings of the Council as observers. (5) The position of a member pursuant to sub-section (3) shall be deemed vacant in the following circumstances:- (a) If he/she resigns from his/her office, (b) If his/her term of office expires, or (c) If he/she dies. 14.

Procedures Relating to Council Meetings: (1) Meetings of the Council shall be held at least twice a year. (2) Meetings of the Council shall be held on the date, time, and place specified by the Chairperson. (3) At least three days prior to a meeting, the Member Secretary of the Council shall give notice to all members including the agenda for discussion. (4) The presence of a majority of the total number of members of the Council shall constitute a quorum for a meeting. (5) The Chairperson shall preside over the meetings of the Council, and in his/her absence, the Vice-Chairperson shall preside over the meetings. (6) The opinion of the majority shall prevail in Council meetings, and in case of a tie, the person presiding over the meeting shall cast the deciding vote. (7) Decisions made by the Council meeting shall be certified by the person presiding and the Member Secretary. (8) Meeting allowances for the Council shall be as prescribed. (9) Other procedures relating to Council meetings shall be as determined by the Council itself. 15. Delegation of Powers: The Council may delegate some of its powers as necessary to the Council Chairperson, member, Chief Executive Officer, concerned body or officer of the Government of Nepal. 16.

Functions, Duties, and Powers of Chief Executive Officer: Notwithstanding anything contained in sub-section (10) of Section 7, the functions, duties, and powers of the Chief Executive Officer of the Authority pursuant to Section 12 shall be as follows:- (a) To act as the administrative and financial chief of the Authority, (b) To implement or cause to implement the decisions of the Council, (c) To oversee, control, and manage the fund of the Authority and the care-taking and management of assets, (d) To formulate the annual programs and plans of the Authority and submit them to the Council, (e) To prepare the annual income-expenditure and supplementary income-expenditure statements of the Authority, (f) To implement the budget, plans, and programs approved by the Council, (g) To make arrangements for conducting internal and final audits of the Authority, (h) To act as a liaison officer between the Authority and the Government of Nepal, the concerned Provincial Government, the concerned Local Level, and other bodies, (i) To establish and maintain contacts and coordination among the various offices under the Authority, (j) To perform functions as per the powers delegated and directives given by the Council, (k) To work as the Member Secretary of the Council and keep records of the Council's decisions, (l) To provide necessary information to the Council for performing functions specified to be done by the Council, (m) To conduct or cause to conduct studies and research on urban transport, (n) To keep records of public transport operated pursuant to this Act, (o) To arrange for effective mechanisms regarding hearing and resolving passenger complaints, (p) To regularly monitor whether public transport operating under the Authority is providing services according to the conditions to be

complied with and to arrange for service in accordance with such conditions, (q) To distribute fare amounts among public transport service providers according to agreement, (r) To cause an organization and management survey of the Authority to be conducted and submitted to the Council, and (s) To perform other functions as prescribed. 17. May Mobilize Financial Resources: The Authority may, for the smooth conduct of its work, borrow loans, receive grants, or mobilize financial resources from any other means with prior approval of the Government of Nepal. Chapter-6 Miscellaneous 18.

Penalty: (1) If any person commits any act as follows, the Chief Executive Officer or any officer employee of the Authority designated by the Authority, or a traffic police officer of at least Assistant Sub-Inspector rank, may impose a fine ranging from one thousand rupees to five thousand rupees:- (d) Travels on public transport without a ticket, travels without paying the prescribed fare, refuses to pay the fare, or attempts to take a facility he/she is not entitled to, (e) Does not collect the prescribed fare from passengers, gives unnecessary concessions, collects less or more fare, (f) Behaves indecently with women, children, senior citizens, persons with disabilities, or other passengers inside public transport, (g) Uses indecent language against the driver, conductor, employees of the Authority, or passengers inside public transport, (h) Causes damage to public transport or dirties it, or throws garbage on the road from public transport, or (i) Violates this Act or the rules made under this Act during emergency and regular inspections of public transport services. (2) Appeals against a fine imposed pursuant to sub-section (1) shall lie in the concerned District Court. 19. Coordination Required: While operating the integrated transport system pursuant to this Act, the Authority shall implement it in coordination with the concerned Province and Local Level. 20. Approval Required: (1) After the commencement of this Act, a service provider wishing to operate public transport services within the jurisdiction of the Authority must obtain approval from the Authority before operating new public transport means. (2) Service providers who were operating public transport services within the jurisdiction of the Authority before the commencement of this Act must obtain approval from the Authority within six months from the date of commencement of this Act. (3) The Authority shall prepare a list of public transport approved pursuant to sub-sections (1) and (2). 21. Government of Nepal May Give Directives: (1) The Government of Nepal may give necessary directives to the Authority regarding the formulation and implementation of public transport service development and expansion plans. (2) It shall be the duty of the Authority to comply with the directives given pursuant to sub-section (1). 22. Land May be Provided: The Government of Nepal may acquire land necessary for implementing transport management, operation, and development plans of the Authority in accordance with the prevailing law and make it available to the Authority. 23.

May Be Recovered as Government Dues: Fees, charges, fares, and fines payable by any person or institution under this Act or the rules made under this Act may be recovered by the Authority as government dues. 24. Shall Be According to Prevailing Law: Matters mentioned in this Act shall be according to this Act, and other matters shall be according to the prevailing law. 25. To Submit Report: The Authority shall submit an annual report of its functions, activities, and income-expenditure to the Provincial Government within ninety days from the date of expiry of the fiscal year, and the Authority pursuant to Section 12 shall also submit it to the Ministry. 26. Contact with Government of Nepal: When contacting the Government of Nepal, the Authority pursuant to Section 12 shall do so through the Ministry. 27. Power to Make Rules: (1) The Provincial Government may make necessary rules for the implementation of this Act. (2) Notwithstanding anything contained in sub-section (1), the Government of Nepal may make necessary rules for the implementation of this Act in the case of the Authority pursuant to Section 12. 28. Power to Make Regulations: (1) Subject to this Act or the rules made under this Act, the Authority may make regulations on other matters including employee service conditions and financial administration. (2) Regulations pursuant to sub-section (1) shall come into effect after approval by the Council in the case of the Authority pursuant to

Section 12, and by the Ministry dealing with transport matters of the Provincial Government in other cases.

(3) The Authority shall publish the regulations approved pursuant to sub-section (2).

29. Act Implementation Review: The Ministry shall review the implementation of this Act within one year of the completion of five years from the commencement of this Act, and subsequently within one year after every five years, and shall submit a report thereof to the relevant committee of both houses of the Federal Parliament.